

7	30-2025-01495141 Doan vs. Secure Guard Security Services, Inc.	The hearing on plaintiff's motion to approve a \$27,500 PAGA settlement is continued to October 12, 2026 at 1:30 p.m. in Department CX103. Plaintiff is ordered to file responsive papers no later than 16 days prior to the hearing. Plaintiff has moved the court to approve a \$27,500 PAGA settlement. On February 9, 2026, the court continued the hearing for several reasons, including plaintiff's failure to provide the settlement agreement and the LWDA notice letter. ROA 68. The court also ordered that, even assuming plaintiff had alleged a PAGA claim solely in his individual capacity, which contradicts the allegations in the complaint, plaintiff must provide authority that a representative PAGA action can be maintained solely in an individual capacity. <i>Id.</i> Plaintiff has failed to file any responsive papers. Accordingly, the court also sets an OSC re: monetary sanctions against plaintiff's counsel for the same date and time due to the failure to file a response as ordered. Any response to the OSC must be filed no later than 16 days prior to the hearing. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
8	30-2018-01015248 Springs vs. SBM Site Services, LLC	Defendant SBM Site Services, LLC's ("Defendant") Motion for the Court to Reinstate Its Order Compelling Arbitration is DENIED. The order compelling arbitration remains vacated under CCP § 1281.98 and the matter will proceed in Superior Court. The court GRANTS Defendant's requests for judicial notice of the court's January 31, 2024 Order Granting Plaintiff's Motion to Vacate Order Compelling Arbitration, and the October 23, 2025 Opinion of the Fourth Appellate District, Third Division, in the Court of Appeal, Fourth Appellate District, Case No. G063924. (Cal. Evid. Code § 452(d).) On January 27, 2023, Judge Sherman granted Defendant's Motion to Compel arbitration as to Plaintiff Brian Springs' ("Plaintiff") individual PAGA claims, but denied as to Plaintiff's representative PAGA claims. (ROA 206.) On January 26, 2024, after Defendant failed to timely pay an arbitration fee to JAMS, Judge Sherman granted Plaintiff's motion to vacate the order compelling arbitration, as the law at

		the time required strict compliance with CCP § 1281.98. (ROA 253.) “In an employment or consumer arbitration that requires, either expressly or through application of state or federal law or the rules of the arbitration provider, that the drafting party pay certain fees and costs during the pendency of an arbitration proceeding, if the fees or costs required to continue the arbitration proceeding are not paid within 30 days after the due date, the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel the employee or consumer to proceed with that arbitration as a result of the material breach.” (CCP § 1281.98(a)(1).) In its opposition, Defendant’s counsel admitted to receiving the invoice from JAMS and the follow-up reminder e-mails from JAMS, and conceded that Defendant failed to timely pay the invoice, but argued that the JAMS invoice should have been sent to Defendant directly to trigger the 30-day deadline. Judge Sherman rejected this argument. On March 15, 2024, Defendant filed a notice of appeal of the January 26, 2024 order. (ROA 259.) The appellate court agreed with Judge Sherman’s finding that JAMS’s provision of the deposit request to Defendant’s counsel for payment of due and owing fees triggered the 30-day period provided in section 1281.98, subdivision (a). (ROA 320 at p. 14.) However, the appellate court believed Judge Sherman’s ruling had to be reversed and remanded due to a change in the law regarding CCP § 1281.98 based on a recent California Supreme Court decision in <i>Hohenshelt v. Superior Ct.</i> The appellate court instructed: “We remand to the trial court to determine in the first instance whether SBM’s failure to timely pay arbitration fees should be excused pursuant to the holding and reasoning of <i>Hohenshelt</i>.” (ROA 320 at p. 16.) In <i>Hohenshelt</i>, the California Supreme Court held that the penalties for failure to make timely payments of arbitration fees under Section 1281.98 could be subject to relief under certain circumstances of good faith conduct and excusable neglect. The California Supreme Court maintained that Section 1281.98 was enforceable and not preempted by the FAA, noting that “[w]ithout a rule requiring timely payment of arbitration fees and imposing meaningful consequences for willful nonpayment, companies could continue to stymie dispute resolution ‘by refusing to participate in the arbitration proceedings’ initiated by their consumers or employees.” (<i>Hohenshelt v. Superior Ct.</i> (2025) 18 Cal. 5th 310, 348.) However, the court explained: “[T]he Legislature sought to
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9	30-2025-01495354 Briseno vs. SchoolsFirst Federal Credit Union, a California Corporation	Defendant SchoolsFirst Federal Credit Union's unopposed motion to compel arbitration and to strike and dismiss class action is GRANTED. The court finds that, due to SchoolsFirst's affect on interstate commerce, the Federal Arbitration Act ("FAA") applies to the arbitration agreement in this case. The Court's role under the FAA is limited to determining: (1) whether there is a valid agreement to arbitrate between the parties; and, if so, (2) whether the agreement covers the dispute. <i>Brennan v. Opus Bank</i>, 796 F.3d 1125, 1130 (9th Cir. 2015). 1 The court has reviewed the motion and finds that the binding arbitration agreement entered into between SchoolsFirst and Briseno is valid, governs her claims, and includes an enforceable class action waiver. Accordingly, the court grants the motion. The matter is compelled to arbitration and the class claims are stricken and dismissed without prejudice. The moving party is ordered to give notice of this ruling.
11	30-2024-01393974 Huaji vs. Jinggang	Plaintiff Liang Huaji's ("Plaintiff") Application of Jacob Chen ("Applicant") to Appear as Counsel Pro Hac Vice is GRANTED. On or before the anniversary of the date of this order, if Applicant remains counsel for Plaintiff, Plaintiff must pay a renewal fee of five hundred dollars (\$500). (Gov. Code § 70617(e)(2).) Plaintiff is ordered to give notice of this ruling.